

THE FEDERAL MARITIME COMMISSION

D. F. YOUNG, INC., Complainant, v. NYK LINE (NORTH AMERICA), INC., Respondent.	Docket No. 16-02 RESPONDENT'S MOTION TO ENLARGE ITS TIME TO OPPOSE COMPLAINANT'S MOTION SERVED SEPTEMBER 6, 2017
---	---

A. Relief Requested

1. Respondent moves pursuant to Rule 102(a) for an enlargement of time up to October 12, 2017 to oppose Complainant's Motion served September 6, 2017 (["Complainant's Motion"](#)).

2. No prior enlargements of time have been requested or granted. A proposed notice accompanies this Motion.

**B. Rule 71
Statement**

3. On September 7, 2017, attorney, Joseph De May, of our office spoke by telephone with Thomas J. Wagner, lead counsel for Complainant, in a good faith attempt to resolve by agreement the issues raised by this Motion. After discussing the matter, they were unable to reach such an agreement. This Motion will be opposed.

C. Background

4. (a) This was an adjudicative proceeding. The Administrative Law Judge issued an Initial Decision on August 1, 2017.

- (b) By [Order served August 18, 2017](#), Complainant was granted a 14 day enlargement of time under Rule 228 to file Exceptions to the Initial Decision.
- (c) Respondent consented to Complainant's enlargement of time in exchange for having its own time to reply to Complainant's Exceptions being similarly extended to give it an extra 14 days—36 days in all. Complainant agreed, and that agreement is reflected in the Commission's [August 18th Order](#) at pp. 1-2.
- (d) On September 6, 2017, Complainant filed its Rule 227(a)(1) [Exceptions to the Initial Decision](#).
- (e) [Complainant's Motion](#) was served along with and as part of its Exceptions.
- (f) Prior to our receipt of it, we were given no inkling that Complainant was going to make such a Motion; which is why we did not ask for additional time when we negotiated time enlargements for the Exceptions.

D. Complainant's Motion

5. Complainant's Motion asks for the following relief:

(a) Recognition of Respondent's tariff and bill of lading;
or

(b) Reopening and remand of the case under Rule 230.

6. Almost all of Complainant's Motion is taken up by arguments in the nature of Exceptions.

E. The Scheduling Problem

7. In agreeing that Complainant could have an additional 14 days to file its Exceptions, Respondent specifically bargained for an additional 14 days if its own so that it could reply to Complainant's Exceptions in 36 days rather than just 22—just as Complainant had 36 days to draft its papers.

8. However, by putting Exceptions arguments in its Motion, Complainant has partly upended its agreement with Respondent.

(a) The first relief requested in Complainant's Motion is recognition of the tariff and bill of lading, and that appears to be in the nature of a non-dispositive motion. 46 C.F.R. 502.69(g). A response to a non-dispositive motion must be served within 7 days—far shorter than the 36 days Respondent bargained

for, and far less, too, than the 22 days given by Rule 227(b)(2).

(b) The second relief requested in Complainant's Motion is reopening and remand of the case, and is governed by Rule 230(c) which requires a reply within 10 days. That's a different deadline than the 7 days applicable to the other relief requested in Complainant's Motion. *See, para. 8(a), above.* It, too, is far less than the 36 days Complainant's counsel agreed to give us to answer his Exceptions, and far less, too, than the 22 days allowed by Rule 227(b)(2).

9. The law does not elevate form over substance. Complainant should not be able to avoid its agreement with Respondent (reduced to the Commission's [August 18th Order](#), pp. 1-2) that Respondent have 36 days to reply to Exceptions by inserting Exceptions arguments into a motion.

10. Complainant had 36 days to draft its Exceptions and Motion. As matters stand now, Respondent stands to have as little as 7 days to reply to a number of Exceptions arguments.

11. Serving piecemeal responses to any application is judicially inefficient; and forcing a rushed response when there is no urgency or emergency to warrant it is unfair to the opposing party. The Exceptions arguments in the Complainant's Motion and those in its Exceptions have to be evaluated together with regardless of the fact that they appear in separate documents. It would be impossible for us to do that, and do it well, within 7 days, or 10 days, or even within the 15 days allowed for dispositive motions.
12. The Initial Decision addresses an issue that appears to be one of first impression, and a brief review of Complainant's Motion and Exception papers shows it has raised a prolixity of issues. Giving Respondent the full 36 days will allow for a more considered and succinct response that will better aid the Commission in its determination.
13. The full 36 days will help Respondent avoid the problem of Dr. Samuel Johnson who once complained that he could have written a shorter letter if he had just had more time.

Dated: White Plains, NY

September 7, 2017

Respectfully submitted,

CICHANOWICZ CALLAN KEANE & De MAY, LLP
50 Main Street, Suite 1045, White Plains, NY 10606
212-344-7042

pkeane@cckd-ny.com

Attorneys for Respondent

By: 
Paul M. Keane

THE FEDERAL MARITIME COMMISSION

D. F. YOUNG, INC., Complainant, v. NYK LINE (NORTH AMERICA), INC., Respondent.	Docket No. 16-02 NOTICE ENLARGING RESPONDENT'S TIME TO OPPOSE COMPLAINANT'S MOTION SERVED SEPTEMBER 6, 2017
---	--

This proceeding is before the Commission on the Administrative Law Judge's Initial Decision Denying Complainant's Summary Decision Motion and Granting Respondent's Summary Decision Motion, issued August 1, 2017. Respondent has filed a Motion for Enlargement of Time to oppose Complainant's Motion served September 6, 2017 requesting recognition of a tariff and bill of lading, or reopening and remand of the case to the Administrative Law Judge. Complainant opposes the motion.

Respondent's request for an extension of time to oppose Complainant's September 6, 2017 Motion is granted. The time for Respondent to file its opposition to Complainant's September 6, 2017 Motion is extended up to and including October 12, 2017.

Rachel E. Dickon
Assistant Secretary